Fort Jackson Contractor Vetting Policy

1. References:

a. DoDI 2000.16 Standard 18. DoD Antiterrorism (AT) Standards.
b. AR 535-13 Antiterrorism, 11 September 2008.
c. Directive-Type Memorandum (DTM) 09-012, "Interim Policy Guidance for DoD Physical Access Control.
d. Immigration and Nationality Act. SEC 274A – Unlawful Employment of Aliens.

2. Purpose: this policy establishes procedures and responsibilities for the standardization-vetting program for contractor employees who work on Fort Jackson and who are authorize a DoD Common Access Card (CAC). In accordance with reference 1.a. and 1.b., this policy implements measures to maintain positive control of contractors within the installation. This policy also ensures contractors are in compliance with reference 1.c. and employ only authorized workers whose identity can be validated.

3. Policy:
a. All contractors on Fort Jackson will be badge under the Contractor Verification System (CVS) program (using a CAC badge) or under the DES Standardized Contractor ID vetting program. Contractors performing work on Fort Jackson for a period 30 days or less, or contractors who have forgotten their badge at home can receive a temporary badge under the DES Standardized Contractor ID vetting program.

b. All garrison, mission, and tenant government organizations on Fort Jackson.
(1) Provide contract data of prime and subcontractors for any contracts you have to the DES contactor Vetting Office supervisor using the Excel Spreadsheet sample format (enclosure 1) by e-mail.
(2) All primary and subcontractors should be aware of the Immigration Customs enforcement (ICE) Mutual Agreement between government and employers (IMAGE) Program (enclosure 2).

c. Fort Jackson Directorate of Emergency Services (DES).
(1) Establish a program to vet contract personnel on Fort Jackson who are not authorized a DoD common access card under the CVS program.
(2) Establish a process to verify contractor employee vital information required to confirm their identity (enclosure 4).
(3) The DES Vetting Office will contact the prime contractor POC as listed on the contract data by e-mail when verification process has been completed to schedule a date and time for badges to be issued. If no e-mail address is listed for the prime contractor, the COR will be notified.
(4) Maintain a current list of all prime and subcontractors currently performing work on Fort Jackson.
(5) Provide a fixed site vetting processing capability located in Bldg. 4394.

d. Contractors.

(1) All prime contractors must provide a letter requesting contactor badges (enclosure 3 & 4) signed by a designated representative from the company listing all employees who require access to Fort Jackson. A separate letter will be submitted for each sub-contractor. The letters will be provided to the Government Contracting Officer Representative (COR) of their contract that is responsible for providing this information to the DES Vetting Office. Requested contract data is to be e-mailed _____, or faxed to _____with a cover sheet indicating it was sent from the COR. The letter will list the last name, first name, middle initial, social security

number of the employee, and have as attachments the E-Verify status and criminal check. Badge request will be kept on file for 90 days from the date the request is received. A new request will be required for any individual that has not received their badge within ninety days.

(2) The contractor is responsible for collecting badges from employees and returning those to the DES Vetting Office once the employee ceases to work on the contract. The contractor will notify the DES Vetting Office when a badge is lost or cannot be recovered from the employee. In the event a badge is lost, the prime contractor will provide a request for replacement badge (enclosure 5) to the DES Vetting Office by e-mail or fax. It is understood this is difficult, but the contractor will make a best effort to obtain the badge and provide a document of his efforts to the COR and the Vetting Office.

(3) It is the contractor's responsibility to provide arm bands or other special means to display ID badge so that the badge would not interfere with safety or the performance of duty.

(4) Contractors are required to verify all social security numbers for their employees prior to submitting the letter to the government COR. One recommended system for social security number verification is the Social Security Administration web-based system at: http://www.ssa.gov/employer/ssnv/htm. Refer to the step-by-step instructions for registering.

e. Badges.

(1) Can serve as a form of ID while on Fort Jackson for accessing the installation.

(2) Will be issued for the length of the contract, plus any additional time requested by the COR (not to exceed four years). If a contract is extended, the COR will notify the DES Vetting Office of the new contract end date. The prime contractor will be responsible for providing a list of names for all employees both prime and subcontractors whose badges need to be extended to the COR who will forward the information to the DES Vetting Office. The badges will be reissued one week prior to the original expiration date.

(3) Badges will be displayed at all times, and may be attached or worn in any manner on the front torso, the right or left arm, or around the neck on the outer most garment so they are easily visible for inspection.

f. Legal Hiring by Individuals. Section 274A of the Immigration and Nationality Act (enclosure 6) provides detailed procedural requirements employers must follow before hiring any individual. All employers, regardless of the size of their respective business, must verify the identity and work authorization of every new hire, citizen, or alien. This includes reviewing documents which establish the employee's legal identity and his/her eligibility to be employed in the United States. If the employee is being hired for three or fewer days, verification must be done immediately when employment commences.

g. Non-compliance. Contractor employees found without badges can be escorted to post boundaries, and referred to the COR. Violations could form the basis for adverse contract action under the rights and remedies of the contract term and conditions.

4. Proponent: Directorate of Emergency Services, Physical Security, at (803) 751-2005.

Immigration Customs Enforcement (ICE) Mutual Agreement between Government and Employer (IMAGE) Program

1. It is highly desired all prime and subcontractors working on Fort Jackson join the Department of Homeland Security (DHS) ICE Mutual Agreement between Government and Employers (IMAGE) Program and become IMAGE certified. A known vulnerability on Fort Jackson has been the presence of unauthorized aliens (undocumented workers) who have secured jobs by fraudulent means, including presentation of false documents, completion of fraudulent benefit applications, and theft of identities. To combat unlawful employment and reduce vulnerabilities that help illegal aliens gain employment, the Department of Homeland security (DHS) recently introduced the ICE Mutual Agreement between the Government and Employers (IMAGE) program. The goal is to assist employers in targeted sectors to develop a more secure and stable workforce and enhance fraudulent documentation awareness through education and training. The website for IMAGE is http:/www.ice.gov/partners/opaimage/

2. Upon enrollment and implementation of the DHS's best hiring practices program participants will be deemed "IMAGE Certified"—a distinction DHS believes will become an industry standard.

3. All IMAGE participants gain membership to DHS's Basic Pilot Employment Verification Program administrated by USCIS. Though this employee authorization verification program, employers can verify newly hired employees are eligible to work in the United States. The internet-based system is available in all 50 states and is currently free to employers. It provides an automated link to the Social Security Administration database and DHS immigration records. To sign up for participation in the Basic Pilot Employment Verification Program, visit the registration Web site http://www.is-dhs.com/EmployerRegistration/

4. For more information on the IMAGE Program, please visit the IMAGE FAQ page. You may request an information packet via the IMAGE Information Packet Request form.

INA: Act 274A – Unlawful Employment of Aliens

Sec. 274A. [8 U.S.C. 1324a]

(a) Making Employment of Unauthorized Aliens Unlawful.-

(1) In general.-It is unlawful for a person or other entity-

(A) to hire, or to recruit or refer for a fee, for employment in the United States an alien knowing the alien is an unauthorized alien (as defined in subsection (h)(3)) with respect to such employment, or

(B) (i) to hire for employment in the United States an individual without complying with the requirements of subsection (b) or (ii) if the person or entity is an agricultural association, agricultural employer, or farm labor contractor (as defined in section 3 of the Migrant and Seasonal Agricultural Worker Protection Act), to hire, or to recruit or refer for a fee, for employment in the United States an individual without complying with the requirements of subsection (b).

(2) Continuing employment.-It is unlawful for a person or other entity, after hiring an alien for employment in accordance with paragraph (1), to continue to employ the alien in the United States knowing the alien is (or has become) an unauthorized alien with respect to such employment.

(3) Defense.-A person or entity that establishes that it has complied in good faith with the requirements of subsection (b) with respect to the hiring, recruiting, or referral for employment of an alien in the United States has established an affirmative defense that the person or entity has not violated paragraph (1)(A) with respect to such hiring, recruiting, or referral.

(4) Use of labor through contract.-For purposes of this section, a person or other entity who uses a contract, subcontract, or exchange, entered into, renegotiated, or extended after the date of the enactment of this section, to obtain the labor of an alien in the United States knowing that the alien is an unauthorized alien (as defined in subsection (h)(3)) with respect to performing such labor, shall be considered to have hired the alien for employment in the United States in violation of paragraph (1)(A).

(5) Use of state employment agency documentation.-For purposes of paragraphs (1)(B) and (3), a person or entity shall be deemed to have complied with the requirements of subsection (b) with respect to the hiring of an individual who was referred for such employment by a State employment agency (as defined by the Attorney General), if the person or entity has and retains (for the period and in the manner described in subsection (b)(3)) appropriate documentation of such referral by that agency, which documentation certifies that the agency has complied with the procedures specified in subsection (b) with respect to the individual's referral.

(6) **1/** Treatment of documentation for certain employees.-

(A) In general. - For purposes of this section, if-

(i) an individual is a member of a collective-bargaining unit and is employed, under a collective bargaining agreement entered into between one or more employee organizations and an association of two or more employers, by an employer that is a member of such association, and

(ii) within the period specified in subparagraph (B), another employer that is a member of the association (or an agent of such association on behalf of the employer) has complied with the requirements of subsection (b) with respect to the employment of the individual, the subsequent employer shall be deemed to have complied with the requirements of subsection (b)

with respect to the hiring of the employee and shall not be liable for civil penalties described in subsection (e)(5).

(B) Period.-The period described in this subparagraph is 3 years, or, if less, the period of time that the individual is authorized to be employed in the United States.

(C) Liability.-

(i) In general.-If any employer that is a member of an association hires for employment in the United States an individual and relies upon the provisions of subparagraph (A) to comply with the requirements of subsection (b) and the individual is an alien not authorized to work in the United States, then for the purposes of paragraph (1)(A), subject to clause (ii), the employer shall be presumed to have known at the time of hiring or afterward that the individual was an alien not authorized to work in the United States.

(ii) Rebuttal of presumption.-The presumption established by clause (i) may be rebutted by the employer only through the presentation of clear and convincing evidence that the employer did not know (and could not reasonably have known) that the individual at the time of hiring or afterward was an alien not authorized to work in the United States.

(iii) Exception.-Clause (i) shall not apply in any prosecution under subsection (f)(1).

(7) **2/** Application to Federal Government._ For purposes of this section, the term "entity" includes an entity in any branch of the Federal Government.

(b) Employment Verification System.-The requirements referred to in paragraphs (1)(B) and (3) of subsection (a) are, in the case of a person or other entity hiring, recruiting, or referring an individual for employment in the United States, the requirements specified in the following three paragraphs:

(1) Attestation after examination of documentation.-

(A) In general.-The person or entity must attest, under penalty of perjury and on a form designated or(A) In general.-The person or entity must attest, under penalty of perjury and on a form designated or established by the Attorney General by regulation, that it has verified that the individual is not an unauthorized alien by examining-

(i) a document described in subparagraph (B), or

(ii) a document described in subparagraph (C) and a document described in subparagraph (D).

Such attestation may be manifested by either a hand-written or an electronic signature. 2a/ A person or entity has complied with the requirement of this paragraph with respect to examination of a document if the document reasonably appears on its face to be genuine. If an individual provides a document or combination of documents that reasonably appears on its face to be genuine and that is sufficient to meet the requirements of the first sentence of this paragraph, nothing in this paragraph shall be construed as requiring the person or entity to solicit the production of any other document or as requiring the individual to produce such another document.

(B) Documents establishing both employment authorization and identity.-A document described in this subparagraph is an individual's-

(i) United States passport;

(ii) resident alien card, alien registration card, or other document designated by the Attorney General, if the document-

(I) contains a photograph of the individual and such other personal identifying information relating to the individual as the Attorney General finds, by regulation, sufficient for purposes of this subsection,

(II) is evidence of authorization of employment in the United States, and

(III) **3/** contains security features to make it resistant to tampering, counterfeiting, and fraudulent use.

(C) Documents evidencing employment authorization.-A document described in this subparagraph is an individual's-

(i) social security account number card (other than such a card which specifies on the face that the issuance of the card does not authorize employment in the United States); or

(ii) other documentation evidencing authorization of employment in the United States which the Attorney General finds, by regulation, to be acceptable for purposes of this section.

(D) Documents establishing identity of individual.-A document described in this subparagraph is an individual's-

(i) driver's license or similar document issued for the purpose of identification by a State, if it contains a photograph of the individual or such other personal identifying information relating to the individual as the Attorney General finds, by regulation, sufficient for purposes of this section; or

(ii) in the case of individuals under 16 years of age or in a State which does not provide for issuance of an identification document (other than a driver's license) referred to in clause (i), documentation of personal identity of such other type as the Attorney General finds, by regulation, provides a reliable means of identification.

(E) **4/** Authority to prohibit use of certain documents.- If the Attorney General finds, by regulation, that any document described in subparagraph (B), (C), or (D) as establishing employment authorization or identity does not reliably establish such authorization or identity or is being used fraudulently to an unacceptable degree, the Attorney General may prohibit or place conditions on its use for purposes of this subsection.

(2) Individual attestation of employment authorization.-The individual must attest, under penalty of perjury on the form designated or established for purposes of paragraph (1), that the individual is a citizen or national of the United States, an alien lawfully admitted for permanent residence, or an alien who is authorized under this Act or by the Attorney General to be hired, recruited, or referred for such employment. Such attestation may be manifested by either a hand-written or an electronic signature. 2a/

(3) Retention of verification form.-After completion of such form in accordance with paragraphs (1) and (2), the person or entity must retain a paper, microfiche, microfilm, or electronic version of 2a/ the form and make it available for inspection by officers of the Service, the Special Counsel for Immigration-Related Unfair Employment Practices, or the Department of Labor during a period beginning on the date of the hiring, recruiting, or referral of the individual and ending-

(A) in the case of the recruiting or referral for a fee (without hiring) of an individual, three years after the date of the recruiting or referral, and

(B) in the case of the hiring of an individual-

(i) three years after the date of such hiring, or

(ii) one year after the date the individual's employment is terminated, whichever is later.

(4) Copying of documentation permitted.- Notwithstanding any other provision of law, the person or entity may copy a document presented by an individual pursuant to this subsection and may retain the copy, but only (except as otherwise permitted under law) for the purpose of complying with the requirements of this subsection.

(5) Limitation on use of attestation form.-A form designated or established by the Attorney General under this subsection and any information contained in or appended to such form, may not be used for purposes other than for enforcement of this Act and sections 1001, 1028, 1546, and 1621 of title 18, United States Code.

(6) **5/** Good faith compliance.-

(A) In general.-Except as provided in subparagraphs (B) and (C), a person or entity is considered to have complied with a requirement of this subsection notwithstanding a technical or procedural failure to meet such requirement if there was a good faith attempt to comply with the requirement.

(B) Exception if failure to correct after notice.- Subparagraph (A) shall not apply if-

(i) the Service (or another enforcement agency) has explained to the person or entity the basis for the failure,

(ii) the person or entity has been provided a period of not less than 10 business days (beginning after the date of the explanation) within which to correct the failure, and

(iii) the person or entity has not corrected the failure voluntarily within such period.

(C) Exception for pattern or practice violators.- Subparagraph (A) shall not apply to a person or entity that has or is engaging in a pattern or practice of violations of subsection (a)(1)(A) or (a)(2).

(c) No Authorization of National Identification Cards.-Nothing in this section shall be construed to authorize, directly or indirectly, the issuance or use of national identification cards or the establishment of a national identification card.

(d) Evaluation and Changes in Employment Verification System.-

(1) Presidential monitoring and improvements in system.-

(A) Monitoring.-The President shall provide for the monitoring and evaluation of the degree to which the employment verification system established under subsection (b) provides a secure system to determine employment eligibility in the United States and shall examine the suitability of existing Federal and State identification systems for use for this purpose.

(B) Improvements to establish secure system.-To the extent that the system established under subsection (b) is found not to be a secure system to determine employment eligibility in the United States, the President shall, subject to paragraph (3) and taking into account the results of any demonstration projects conducted under paragraph (4), implement such changes in (including additions to) the requirements of subsection (b) as may be necessary to establish a secure system to determine employment eligibility in the United States. Such changes in the system may be implemented only if the changes conform to the requirements of paragraph (2).

(2) Restrictions on changes in system.-Any change the President proposes to implement under paragraph (1) in the verification system must be designed in a manner so the verification system, as so changed, meets the following requirements:

(A) Reliable determination of identity.-The system must be capable of reliably determining whether-

(i) a person with the identity claimed by an employee or prospective employee is eligible to work, and

(ii) the employee or prospective employee is claiming the identity of another individual.

(B) Using of counterfeit-resistant documents.-If the system requires that a document be presented to or examined by an employer, the document must be in a form which is resistant to counterfeiting and tampering.

(C) Limited use of system.-Any personal information utilized by the system may not be made available to Government agencies, employers, and other persons except to the extent necessary to verify that an individual is not an unauthorized alien.

(D) Privacy of information.-The system must protect the privacy and security of personal information and identifiers utilized in the system.

(E) Limited denial of verification.-A verification that an employee or prospective employee is eligible to be employed in the United States may not be withheld or revoked under the system for any reason other than that the employee or prospective employee is an unauthorized alien.

(F) Limited use for law enforcement purposes.-The system may not be used for law enforcement purposes, other than for enforcement of this Act or sections 1001, 1028, 1546, and 1621 of title 18, United States Code.

(G) Restriction on use of new documents.-If the system requires individuals to present a new card or other document (designed specifically for use for this purpose) at the time of hiring, recruitment, or referral, then such document may not be required to be presented for any purpose other than under this Act (or enforcement of sections 1001, 1028, 1546, and 1621 of title 18, United States Code) nor to be carried on one's person.

(3) Notice to congress before implementing changes.-

(A) In general.-The President may not implement any change under paragraph (1) unless at least-

(i) 60 days,

(ii) one year, in the case of a major change described in subparagraph (D)(iii), or

(iii) two years, in the case of a major change described in clause (i) or (ii) of subparagraph (D), before the date of implementation of the change, the President has prepared and transmitted to the Committee on the Judiciary of the House of Representatives and to the Committee on the Judiciary of the Senate a written report setting forth the proposed change. If the President proposes to make any change regarding social security account number cards, the President shall transmit to the Committee on Ways and Means of the House of Representatives and to the Committee on Finance of the Senate a written report setting forth the proposed change. The President promptly shall cause to have printed in the Federal Register the substance of any major change (described in subparagraph (D)) proposed and reported to Congress.

(B) Contents of report.-In any report under subparagraph (A) the President shall include recommendations for the establishment of civil and criminal sanctions for unauthorized use or disclosure of the information or identifiers contained in such system.

(C) Congressional review of major changes.-

(i) Hearings and review.-The Committees on the Judiciary of the House of Representatives and of the Senate shall cause to have printed in the Congressional Record the substance of any major change described in subparagraph (D), shall hold hearings respecting the feasibility and desirability of implementing such a change, and, within the two year period before implementation, shall report to their respective Houses findings on whether or not such a change should be implemented.

(ii) Congressional action.-No major change may be implemented unless the Congress specifically provides, in an appropriations or other Act, for funds for implementation of the change.

(D) Major changes defined.-As used in this paragraph, the term "major change" means a change which would-

(i) require an individual to present a new card or other document (designed specifically for use for this purpose) at the time of hiring, recruitment, or referral,

(ii) provide for a telephone verification system under which an employer, recruiter, or referrer must transmit to a Federal official information concerning the immigration status of prospective employees and the official transmits to the person, and the person must record, a verification code, or

(iii) require any change in any card used for accounting purposes under the Social Security Act, including any change requiring that the only social security account number cards which may be presented in order to comply with subsection (b)(1)(C)(i) are such cards as are in a counterfeit-resistant form consistent with the second sentence of section 205(c)(2)(D) of the Social Security Act.

(E) General revenue funding of social security card changes.-Any costs incurred in developing and implementing any change described in subparagraph (D)(iii) for purposes of this subsection shall not be paid for out of any trust fund established under the Social Security Act.

(4) Demonstration projects.-

(A) Authority.-The President may undertake demonstration projects (consistent with paragraph (2)) of different changes in the requirements of subsection (b). No such project may extend over a period of longer than five years

(B) Reports on projects.-The President shall report to the Congress on the results of demonstration projects conducted under this paragraph.

(e) Compliance.-

(1) Complaints and investigations.-The Attorney General shall establish procedures-

(A) for individuals and entities to file written, signed complaints respecting potential violations of subsection (a) or (g)(1),

(B) for the investigation of those complaints which, on their face, have a substantial probability of validity,

(C) for the investigation of such other violations of subsection (a) or (g)(1) as the Attorney General determines to be appropriate, and

(D) for the designation in the Service of a unit which has, as its primary duty, the prosecution of cases of violations of subsection (a) or (g)(1) under this subsection.

(2) Authority in investigations.-In conducting investigations and hearings under this subsection-

(A) immigration officers and administrative law judges shall have reasonable access to examine evidence of any person or entity being investigated,

(B) administrative law judges, may, if necessary, compel by subpoena the attendance of witnesses and the production of evidence at any designated place or hearing, and

(C) **6/** immigration officers designated by the Commissioner may compel by subpoena the attendance of witnesses and the production of evidence at any designated place prior to the filing of a complaint in a case under paragraph (2).

In case of contumacy or refusal to obey a subpoena lawfully issued under this paragraph and upon application of the Attorney General, an appropriate district court of the United States may issue an order requiring compliance with such subpoena and any failure to obey such order may be punished by such court as contempt thereof.

(3) Hearing.-

(A) In general.-Before imposing an order described in paragraph (4), (5), or (6) against a person or entity under this subsection for a violation of subsection (a) or (g)(1), the Attorney General shall provide the person or entity with notice and, upon request made within a reasonable time (of not less than 30 days, as established by the Attorney General) of the date of the notice, a hearing respecting the violation.

(B) Conduct of hearing.-Any hearing so requested shall be conducted before an administrative law judge. The hearing shall be conducted in accordance with the requirements of section 554 of title 5, United States Code. The hearing shall be held at the nearest practicable place to the place where the person or entity resides or of the place where the alleged violation occurred. If no hearing is so requested, the Attorney General's imposition of the order shall constitute a final and unappealable order.

(C) Issuance of orders.-If the administrative law judge determines, upon the preponderance of the evidence received, that a person or entity named in the complaint has violated subsection (a) or (g)(1), the administrative law judge shall state his findings of fact and issue and cause to be served on such person or entity an order described in paragraph (4), (5), or (6).

(4) Cease and desist order with civil money penalty for hiring, recruiting, and referral violations.-With respect to a violation of subsection (a)(1)(A) or (a)(2), the order under this subsection-

(A) shall require the person or entity to cease and desist from such violations and to pay a civil penalty in an amount of-

(i) not less than $250 and not more than $2,000 for each unauthorized alien with respect to whom a violation of either such subsection occurred,

(ii) not less than $2,000 and not more than $5,000 for each such alien in the case of a person or entity previously subject to one order under this paragraph, or

(iii) not less than $3,000 and not more than $10,000 for each such alien in the case of a person or entity previously subject to more than one order under this paragraph; and

(B) may require the person or entity-

(i) to comply with the requirements of subsection (b) (or subsection (d) if applicable) with respect to individuals hired (or recruited or referred for employment for a fee) during a period of up to three years, and

(ii) to take such other remedial action as is appropriate.

In applying this subsection in the case of a person or entity composed of distinct, physically separate subdivisions each of which provides separately for the hiring, recruiting, or referring for employment, without reference to the practices of, and not under the control of or common control with, another subdivision, each such subdivision shall be considered a separate person or entity.

(5) Order for civil money penalty for paperwork violations.- With respect to a violation of subsection (a)(1)(B), the order under this subsection shall require the person or entity to pay a civil penalty in an amount of not less than $100 and not more than $1,000 for each individual

with respect to whom such violation occurred. In determining the amount of the penalty, due consideration shall be given to the size of the business of the employer being charged, the good faith of the employer, the seriousness of the violation, whether or not the individual was an unauthorized alien, and the history of previous violations.

(6) Order for prohibited indemnity bonds.-With respect to a violation of subsection (g)(1), the order under this subsection may provide for the remedy described in subsection in subsection (g)(2).

(7) Administrative appellate review.-The decision and order of an administrative law judge shall become the final agency decision and order of the Attorney General unless either (A) within 30 days, an official delegated by regulation to exercise review authority over the decision and order modifies or vacates the decision and order, or (B) within 30 days of the date of such a modification or vacation (or within 60 days of the date of decision and order of an administrative law judge if not so modified or vacated) the decision and order is referred to the Attorney General pursuant to regulations, **7/** in which case the decision and order of the Attorney General shall become the final agency decision and order **8/** under this subsection. The Attorney General may not delegate the Attorney General's authority under this paragraph to any entity which has review authority over immigration-related matters.

(8) Judicial review.-A person or entity adversely affected by a final order respecting an assessment may, within 45 days after the date the final order is issued, file a petition in the Court of Appeals for the appropriate circuit for review of the order.

(9) Enforcement of orders.-If a person or entity fails to comply with a final order issued under this subsection against the person or entity, the Attorney General shall file a suit to seek compliance with the order in any appropriate district court of the United States. In any such suit, the validity and appropriateness of the final order shall not be subject to review.

(f) Criminal Penalties and Injunctions for Pattern or Practice Violations.-

(1) Criminal penalty.-Any person or entity which engages in a pattern or practice of violations of subsection (a)(1)(A) or (a)(2) shall be fined not more than $3,000 for each unauthorized alien with respect to whom such a violation occurs, imprisoned for not more than six months for the entire pattern or practice, or both, notwithstanding the provisions of any other Federal law relating to fine levels.

(2) Enjoining of pattern or practice violations.-Whenever the Attorney General has reasonable cause to believe that a person or entity is engaged in a pattern or practice of employment, recruitment, or referral in violation of paragraph (1)(A) or (2) of subsection (a), the Attorney General may bring a civil action in the appropriate district court of the United States requesting such relief, including a permanent or temporary injunction, restraining order, or other order against the person or entity, as the Attorney General deems necessary.

(g) Prohibition of Indemnity Bonds.-

(1) Prohibition.-It is unlawful for a person or other entity, in the hiring, recruiting, or referring for employment of any individual, to require the individual to post a bond or security, to pay or agree to pay an amount, or otherwise to provide a financial guarantee or indemnity, against any potential liability arising under this section relating to such hiring, recruiting, or referring of the individual.

(2) Civil penalty.-Any person or entity which is determined, after notice and opportunity for an administrative hearing under subsection (e), to have violated paragraph (1) shall be subject to a civil penalty of $1,000 for each violation and to an administrative order requiring the return of

any amounts received in violation of such paragraph to the employee or, if the employee cannot be located, to the general fund of the Treasury.
(h) Miscellaneous Provisions.-
(1) Documentation.-In providing documentation or endorsement of authorization of aliens (other than aliens lawfully admitted for permanent residence) authorized to be employed in the United States, the Attorney General shall provide that any limitations with respect to the period or type of employment or employer shall be conspicuously stated on the documentation or endorsement.
(2) Preemption.-The provisions of this section preempt any State or local law imposing civil or criminal sanctions (other than through licensing and similar laws) upon those who employ, or recruit or refer for a fee for employment, unauthorized aliens.
(3) Definition of unauthorized alien.-As used in this section, the term "unauthorized alien" means, with respect to the employment of an alien at a particular time, that the alien is not at that time either (A) an alien lawfully admitted for permanent residence, or (B) authorized to be so employed by this Act or by the Attorney General. (i)-(n) **9/**

FOOTNOTES FOR SECTION 274A
INA: ACT 274A FN 1

FN 1 Added by **§ 412(b) of IIRIRA**, effective as "to individuals hired on or after 60 days after the date of enactment of this Act."
INA: ACT 274A FN 2
FN 2 Paragraph (7) added by **§ 412(d) of IIRIRA**, effective for "hiring occurring before, on, or after the date of the enactment of [IIRIRA], but no penalty shall be imposed under subsection (e) or (f) of section 274A of the Immigration and Nationality Act for such hiring occurring before such date."
INA: ACT 274A FN 2a

FN 2a Section 274A(b)(1)(A), (2) and (3) were amended by **Section 1 of Public Law 108-390** , dated October 30, 2004.
EFFECTIVE DATE.--The amendments of Public Law 108-390 shall take effect on the earlier of--
(1) the date on which final regulations implementing such amendments take effect; or
(2) 180 days after the date of the enactment of this Act.
INA: ACT 274A FN 3
FN 3 Added by **§ 412(a) of IIRIRA**, effective "with respect to hiring (or recruitment or referral) occurring on or after such date (not later than 12 months after the date of enactment of [IIRIRA]) as the Attorney shall designate."
INA: ACT274A FN 4
FN 4 Added by **§ 412(a) of IIRIRA**, effective "with respect to hiring (or recruitment or referral) occurring on or after such date (not later than 12 months after the date of enactment of [IIRIRA]) as the Attorney shall designate."
INA: ACT274A FN 5
FN 5 Added by **§ 411 of IIRIRA**, effective for "failures occurring on or after the date of the enactment of [IIRIRA]."
INA: ACT274A FN 6

FN 6 / Added by **§ 416 of IIRIRA**.
INA: ACT274A FN 7
FN 7 Amended by **§ 379(a)(1) of IIRIRA**, effective for "orders issued on or after the date of the enactment of this Act."
INA: ACT274A FN 8
FN 8 Amended by **§ 379(a)(2) of IIRIRA**, effective for "orders issued on or after the date of the enactment of this Act."
INA: ACT274A FN 9
FN 9 Subsections (i) through (n) were struck as "dated provisions" by **§ 412(c) of IIRIRA**.

ENCLOSURE 1

Fort Jackson Contractor Vetting Policy

Sample Contractor Identification Data Elements for Spreadsheet

1. Contract Number
2. Contract Title
3. Contract Description
4. Contractor (company Name)
5. Period of Work – Start
6. Period of work – End
7. Prime or Subcontractor
8. Sub to Which Company
9. Name of Company Point of Contact
10. Company Phone Number w/ Area Code
11. Company Street address
12. City
13. State
14. ZIP
15. Company POC Email
16. Government ORG/Unit (Sponsor)
17. Contracting Officer Representative (COR) Name
18. COR Phone Number w/Area Code
19 COR Email
20. Administrating Contractor Office (ACA DOC of COE)

ENCLOSURE 2

Fort Jackson Contractor Vetting Policy

Immigration Customs Enforcement (ICE) Mutual Agreement between Government and Employer (IMAGE) Program

1. It is highly desired all prime and subcontractors working on Fort Jackson join the Department of Homeland Security (DHS) ICE Mutual Agreement between Government and Employers (IMAGE) Program and become IMAGE certified. A known vulnerability on Fort Jackson has been the presence of unauthorized aliens (undocumented workers) who have secured jobs by fraudulent means, including presentation of false documents, completion of fraudulent benefit applications, and theft of identities. To combat unlawful employment and reduce vulnerabilities that help illegal aliens gain employment, the Department of Homeland security (DHS) recently introduced the ICE Mutual Agreement between the Government and Employers (IMAGE) program. The goal is to assist employers in targeted sectors to develop a more secure and stable workforce and enhance fraudulent documentation awareness through education and training. The website for IMAGE is http:/www.ice.gov/partners/opaimage/

2. Upon enrollment and implementation of the DHS's best hiring practices program participants will be deemed "IMAGE Certified"—a distinction DHS believes will become an industry standard.
3. All IMAGE participants gain membership to DHS's Basic Pilot Employment Verification Program administrated by USCIS. Though this employee authorization verification program, employers can verify newly hired employees are eligible to work in the United States. The internet-based system is available in all 50 states and is currently free to employers. It provides an automated link to the Social Security Administration database and DHS immigration records. To sign up for participation in the Basic Pilot Employment Verification Program, visit the registration Web site http://www.is-dhs.com/EmployerRegistration/
4. For more information on the IMAGE Program, please visit the IMAGE FAQ page. You may request an information packet via the IMAGE Information Packet Request form.

ENCLOSURE 3

Fort Jackson Contractor Vetting Policy

Sample Letter Requesting Contractor Badge

Company Name
Company Address
Company Phone Number
Or can be printed on company letterhead

REQUEST THROUGH (Address to the COR) DATE

FOR Directorate of Emergency Services, Contract Vetting Office, Fort Jackson, South Carolina

SUBJECT: Request for Contractor Badge

Request contractor employee badges for the following personnel for access to Fort Jackson in support of ACA/DOC/COE contract number (enter the contract number), enter contract name), Fort Jackson, South Carolina. Start Date: mmddyy. End Date: mmddyy.

Last Name	First Name	MI	SSN

I hereby certify all social security numbers have been validated, and where appropriate, immigration information validated through the Immigration and Customs Enforcement Agency (ICE). The employees understand failure to have a DES standard contractor badge are grounds for removal from Fort Jackson, referral to the contracting officer, and possible issuance of a bar-letter prohibiting re-entry.

I certify none of the individuals listed above are employed by this company as a part of any prison or jail work release program or if they are, I am providing in a separate letter, attached hereto, the details concerning such individual's participation in such program, including the nature of the crime or crimes for which the individual was convicted, the jurisdiction in which the conviction took place, the date of the conviction, the sentence imposed, the date the individual entered the work release program and the name of the correctional facility from which the individual was released to participate in the program. I understand the Government will make a separate determination on whether or not to issue a badge to such individuals.

SIGNATURE OF COMPANY REPRESENTATIVE

(Attachments must include the E-Verify and Enclosure 4 –NCIC Request)

ENCLOSURE 4

Fort Jackson Contractor Vetting Policy

REQUEST FOR NCIC CHECK

FULL NAME: _____

AKA: _____
DOB: _____
DL # & STATE OF ISSUE: _____
SSN: _____
REQUESTOR NAME & TITLE: _____
REQUESTOR ORGANIZATION & TEL# :

_____

_____
SIGNATURE OF REQUESTOR: _____
DATE OF REQUEST: _____
REASON FOR REQUEST: _____

ENCLOSURE 5

Fort Jackson Contractor Vetting Policy

Sample Request for Replacement Contractor Badge Date

Company Name
Company Address
Company Phone Number
Or can be printed on company letterhead

TO Directorate of Emergency Services, Contractor Vetting Office, Fort Jackson, South Carolina

SUBJECT: Request for Replacement Contractor Badge

I, (Bob T. Builder SSN 000-00-000, attest my contractor Security Badge has been lost or destroyed and I am not in possession of the badge. I understand if the lost badge is recovered, I will immediately surrender it to (enter prime contractor name) who will return it to the DES Contractor Badge Office.

_____
(SIGNATURE)

Bob T. Builder
Yes We Can Construction

_____
(SIGNATURE)

Janet Jackhammer
Office Manager
Yes We Can Construction